

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMERICAN SECURITIES
ASSOCIATION and CITADEL
SECURITIES LLC,

Petitioners,

v.

UNITED STATES SECURITIES
AND EXCHANGE COMMISSION,

Respondent.

No. 23-13396

**PETITIONERS' UNOPPOSED MOTION FOR EXTENSION OF TIME
TO RESPOND TO MOTIONS FOR LEAVE TO INTERVENE
(TIME-SENSITIVE)**

Pursuant to Federal Rules of Appellate Procedure 26(b) and 27 and 11th Circuit Rules 26-1 and 27-1, petitioners the American Securities Association and Citadel Securities LLC submit this unopposed, time-sensitive motion for a four-day extension of time until December 1, 2023, to respond to the four motions for leave to intervene that were filed on November 16, 2023, by (1) Consolidated Audit Trail LLC; (2) the Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLX; (3) New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc; and (4) Cboe BYX Exchange, Inc., Cboe BZX Exchange,

Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc. (collectively, movants).

In accordance with 11th Circuit Rules 26-1 and 27-1(a)(5), petitioners' counsel has conferred with counsel for movants and counsel for respondent U.S. Securities and Exchange Commission. Movants and respondent do not oppose petitioners' four-day extension request.

In support of this motion, petitioners state as follows:

1. Federal Rule of Appellate Procedure 15(d) requires that a motion to intervene in a case seeking review of an agency action “must be filed within 30 days after the petition for review is filed and must contain a concise statement of the interest of the moving party and the grounds for intervention.” Fed. R. App. P. 15(d); *accord* 11th Circuit Rule 15-4. Petitioners sought review of the SEC order at issue on October 17, 2023. Doc. 1. Movants filed their respective motions for leave to intervene on November 16, 2023, the final day permitted by Rule 15(d). Petitioners oppose the motions and intend to respond. Under Federal Rules of Appellate Procedure 26(a)(1) and 27(a)(3)(A), petitioners' current response deadline is Monday, November 27, 2023.

2. There is good cause for petitioners' four-day extension request. ***First***, the impending Thanksgiving holiday complicates petitioners' ability to respond to the motions for leave to intervene. Movants filed their motions on the eve of the Thanksgiving holiday week. As a consequence, there are only five business days

between the time when movants filed their motions and the current deadline for petitioners' response. Petitioners' representatives and counsel have personal and family commitments, including travel, over the Thanksgiving holiday week and thus require additional time to respond.

3. ***Second***, movants have filed four separate motions for leave to intervene, which raise multiple issues to which petitioners need to respond. Petitioners and their counsel require additional time to develop and prepare arguments in response.

4. ***Third***, no party or movant will be prejudiced by a four-day extension, it will not unduly delay the Court's consideration of this matter, and movants and respondent do not oppose the relief requested. Respondent has not yet filed the administrative record, nor has the Court set a schedule for merits briefing. A four-day extension of time to respond to the motions for leave to intervene will therefore not affect the progress of this case or the Court's ability to consider the petition promptly after the parties complete merits briefing.

* * *

Petitioners respectfully request that the Court grant their unopposed motion for a four-day extension of time until December 1, 2023, to respond to the four motions for leave to intervene.

Dated: November 17, 2023

/s/ J. Michael Connolly
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Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I certify that this motion complies with (1) the type-volume limitations of Federal Rule of Appellate Procedure 27(d)(2)(A) because it contains 547 words, excluding any parts exempted by Rule 27(a)(2)(B); and (2) the typeface and type-style requirements of Rule 27(d)(1)(E) because it has been prepared in 14-point Garamond (a proportionally spaced typeface) using Microsoft Word.

Dated: November 17, 2023

Respectfully submitted,

/s/ Noel J. Francisco
Noel J. Francisco

*Counsel of Record for Petitioner Citadel
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/s/ J. Michael Connolly
J. Michael Connolly

*Counsel of Record for Petitioner American
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CERTIFICATE OF ELECTRONIC SUBMISSION

I certify that: (1) any required privacy redactions have been made; (2) the electronic submission of this document is an exact copy of any corresponding paper document; and (3) the document has been scanned for viruses with the most recent version of a commercial virus scanning program and is free from viruses.

Dated: November 17, 2023

Respectfully submitted,

/s/ Noel J. Francisco
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*Counsel of Record for Petitioner Citadel
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/s/ J. Michael Connolly
J. Michael Connolly

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CERTIFICATE OF SERVICE

I certify that on November 17, 2023, the foregoing Motion was electronically filed with the United States Court of Appeals for the Eleventh Circuit using the CM/ECF system. I certify that all participants in the case are registered CM/ECF users and that service will be accomplished by the CM/ECF system.

Dated: November 17, 2023

Respectfully submitted,

/s/ Noel J. Francisco
Noel J. Francisco

*Counsel of Record for Petitioner Citadel
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/s/ J. Michael Connolly
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